

STATE OF GEORGIA

COUNTY OF SUMTER

**ECONOMIC DEVELOPMENT AGREEMENT
BETWEEN AMERICUS-SUMTER PAYROLL DEVELOPMENT AUTHORITY
AND LIBERTY GA USA LLC**

This Economic Development Agreement (the "Agreement") is made and entered into effective the 1st day of July, 2026, (the "Effective Date") by and between **Americus-Sumter Payroll Development Authority**, a body corporate and politic in Sumter County, Georgia, authorized and existing under the Constitution and laws of the State of Georgia, with a principal office address of 409 Elm Avenue, Suite B, Americus, Georgia 31709 (hereinafter referred to as "PDA") and **Liberty GA USA LLC** a corporation with a principal office address of 8735 Dunwoody Place, Suite R, Atlanta, Georgia 30350 (hereinafter referred to as "Liberty").

W I T N E S S E T H :

WHEREAS, the PDA is authorized pursuant to the constitutional provisions appearing in Georgia Laws 1962, Page 933, to enter into agreements in connection with economic development activities in Americus, Sumter County, Georgia; and

WHEREAS, Liberty has determined it appropriate to construct, establish, and operate Liberty planned Innovation and Data Center (the "Data Center") in Americus, Sumter County, Georgia; and

WHEREAS, the PDA and Liberty have previously entered into a Real Estate Purchase and Sale Agreement (the "PSA") dated as of July 1, 2026 whereby Liberty will purchase and acquire approximately 102 acres of land located in Land Lots 202 and 203 of the 27th Land District of Americus and Sumter County, Georgia, where the Data Center shall be constructed, equipped, and operated; and

WHEREAS, the PDA and Liberty have agreed to execute this Economic Development Agreement regarding the construction, equipping, and operating of the Data Center at such location in Americus and Sumter County, Georgia in accord with the terms and conditions of this Economic Development Agreement.

NOW, THEREFORE, in consideration of the premises and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto do hereby agree as follows:

1. **Definitions.**

(A) *"Data Center."* A facility primarily used for the housing of computer systems, service, telecommunications equipment, data storage systems, and associated mechanical and electrical infrastructure necessary for the processing, storage, and transmission of digital information. Such facilities may include electrical substations, backup generators, cooling equipment, battery energy storage systems, and related support infrastructure.

(B) *"Data Center Campus."* A geographically contiguous development consisting of one or more buildings developed in phases for the purpose of housing data center operations totaling approximately 400,000 square feet or more of gross floor area when all Phases of the construction are completed.

(C) *"Code of Ordinances of the City of Americus."* The Code of Ordinances and regulations adopted and amended by the City of Americus from time to time.

(D) *"Innovation Center."* A component of the Liberty facility to be located upon "The Americus Tech Campus" as a long-term technology, innovation, and workforce development initiative to be designed to position Sumter County, Georgia as a destination for advanced technology investment, artificial intelligence infrastructure, research, education, and high-quality employment opportunities. The Innovation Center shall be established as a collaborative ecosystem that brings together technology infrastructure, workforce development, educational partnerships, innovation programs and economic development initiatives to establish lasting benefits for the residents of Sumter County and the surrounding region. Liberty agrees to develop and operate the "Americus Tech Campus" in a manner that is environmentally responsible, community-focused, and aligned with the long-term interests of Sumter County and its residents.

2. **The Property.** The Data Center, the Innovation Center, all necessary electric substations, and logistics buildings shall be located on real property which is more particularly described on Exhibit "A" hereto (the "Property"), which Exhibit "A" is incorporated into and made a part of this description by specific reference thereto.

3. **Project Description.** Liberty shall undertake the following activities on the Property in connection with the construction, equipping, and operating the facilities to be constructed thereon:

(A) Commencing not later than January of 2027, Liberty shall construct, equip, and operate facilities located on approximately 102 acres of raw land

on Swett Avenue, in Americus, Sumter County, Georgia, identified as Ad Valorem Tax Parcel ID No. 64-17, in four phases. Such real property is the Property more particularly described on Exhibit "A" hereto. The Phase One construction shall include the construction and equipping an innovation center building, substation, logistics building and one of the Data Center buildings. Phase One shall be completed, licensed, and in full operation by December of 2029. Phase Two through Phase Four construction shall include construction and equipping three additional Data Centers buildings on the Property, and the Phase Two, Phase Three, and Phase Four construction shall be completed, licensed, and in full operation by December of 2033. Such completion dates shall be subject to extension by written mutual agreement or agreements between the parties in the event of the occurrence of one or more *Force Majeure* events during one or more of the construction Phases. For the purpose of this Agreement, the term "*Force Majeure*" means any period of delay which arises from or through acts of God; strikes, lockouts or labor disputes; explosions, sabotage, accident, riot, or civil disorder; acts of war; fire or other casualty; delays caused by the other party; and causes beyond the reasonable control of the party. If either party is delayed or hindered in the performance of any obligation or agreement contained in this Agreement, other than an obligation to pay money, by reason of a *Force Majeure* event or events which occurs within the time allowed for performance under the terms of this Agreement, then the applicable time period for performance of such non-monetary obligation or agreement shall be extended for the period of the delay attributable to *Force Majeure*.

(B) Except as otherwise provided in this Agreement, Liberty agrees to continually conduct Data Center and related operations at the Property for no fewer than thirty (30) consecutive calendar years.

(C) Liberty shall invest approximately \$1,000,000,000 to \$5,000,000,000 in capital improvements, construction, equipment, and related assets during the Four Phases of the project.

(D) Liberty shall employ or cause to be employed approximately 250 full-time employees throughout the construction of the Four Phases of the construction of the project.

(E) Liberty shall maintain at least 150 new full-time jobs with an average annual wage of \$80,000.00 within 2 years of (i) the final completion of the Four Phases and (ii) the receipt of a Certificate of Occupancy from the appropriate local governmental entity.

4. **Incentives Provided by Authority.** Subject to Liberty's compliance with this Agreement, Authority agrees to provide the following incentives ("Incentives") to Liberty with respect to the project:

(A) The PDA shall sell and convey the Property, which the parties acknowledge and agree has a fair market value of \$469,000.00, to Liberty, for a

purchase price of \$1.00. Such transaction shall be closed in accord with the provision of the PSA.

(B) The PDA has obtained, at the PDA's sole cost and expense, a new survey of the Property, a wetlands report, a Phase I study, and a boundary line survey of the Property, each of which has been delivered to Liberty. Such survey has been provided to and approved by both parties prior to closing, and the approved survey has been recorded in the office of the Clerk of Superior Court of Sumter County, Georgia in Plat Book F, Page 316. Such survey shall be used as the basis of the legal description to be used to describe the Property at the closing with the PDA,

(C) All Incentives are contingent upon annual verification of Liberty's performance obligations at the end of years 2 through 5 by the PDA, and Liberty shall cooperate with the PDA and its employees and agents in connection with the verification process each such year.

5. **Obligations Required of Liberty.**

(A) Liberty shall provide to the Authority such documentation as reasonably required to verify compliance with Liberty's performance under the terms of this Agreement, including, but not limited to, employment reports, payroll summaries, and capital expenditure records.

(B) Liberty shall strictly comply with all applicable federal laws, Georgia laws, City of Americus ordinances, and all federal, state, and local regulations promulgated thereunder with respect to its operations under this Agreement. With respect to applicable ordinances and regulations adopted by the City of Americus, the parties recognize that the City of Americus shall have non-exclusive jurisdiction to enforce compliance with its ordinances and regulations including, but not limited to, those applicable to the following subject matters:

- (i) Sound and Noise Decibel Limitations
- (ii) Community Development Ordinances
- (iii) Emergency Management Ordinances
- (iv) Fire Prevention and Protection Ordinances
- (v) Health and Sanitation Ordinances
- (vi) Licensure, Taxation, Building Ordinances
- (vii) Nuisance Ordinances
- (viii) Vibration Limitations or Prohibitions
- (ix) Planning and Development Ordinances
- (x) Certificate of Occupancy Ordinances
- (xi) Outdoor lighting Ordinances
- (xii) Required Property Buffers Ordinances
- (xiii) Traffic, Vehicles, and Parking Ordinances
- (xiv) Utilities Ordinances and Regulations
- (xv) Environmental and Natural Resources Ordinances

- (xvi) Buildings Ordinances and Building Regulations
- (xvii) Zoning and Planning Ordinances

In the event of any violations of the City Code by Liberty, or any by any officer, employee, agent, contractor, or subcontractor of Liberty, the City shall enforce such Ordinances in the manner prescribed in the City Code.

(C) Liberty shall not construct or utilize water wells to provide water to operate its facility; nor shall Liberty construct and operate a sanitary sewer system in order to operate its facility. Rather, Liberty shall submit applications to the City of Americus to provide water and sewer connections and service to operate its facility.

6. **Reporting and Verification.**

With respect to the obligations of Liberty under this Agreement:

(A) Liberty shall submit annual compliance reports to the PDA no later than December 1 of each calendar year during which this Agreement is in effect, including:

- (i) Number of full-time employees;
- (ii) Average wages and benefits;
- (iii) Capital investment completed to date; and
- (iv) Any other information reasonably requested by the PDA.

(B) The PDA shall be authorized to conduct audits or submit requests for third-party verification at Liberty's expense if discrepancies are identified by the PDA, or by any third party undertaking such audits on behalf of the PDA.

7. **PDA's Obligations Under this Agreement.**

The PDA's obligations under this Agreement shall be subject to the PDA having reasonably available funds for any required expenditures hereunder and to the PDA having the legal authority to undertake and complete such obligations in accord with applicable Georgia law.

8. **Notices.**

All notices, requests, demands, tenders and other communications under this Agreement shall be in writing. Any such notice, request, demand, tender or other communication shall be deemed to have been duly given if personally delivered, sent via overnight courier service, deposited in the United States Mail, Certified Mail, Return Receipt Requested, with all postage prepaid, to the address for each party set forth below, or sent via electronic mail or facsimile. Any party, by written notice to the others in the manner herein provided, may designate an address different from that

stated above. As of the effective date hereof, notices to the PDA and to Liberty Data shall be addressed as follows:

Americus Sumter Payroll Development Authority
Post Office Box 925
Americus, Georgia 31709
Attn: Rusty Warner
Email: RustyWarner@msn.com

Liberty GA USA LLC
8735 Dunwoody Place
Suite R
Atlanta, Georgia 30350
Attn: Tony Di Benedetto
Email: tony@boltdigitaltech.com

Krevolin & Horst, LLC
1201 W. Peachtree Street, NW
Suite 3500
Atlanta, Georgia 30309
Attn: Jacquelyn A. Caroe, Esq.
Email: caroe@khlawfirm.com

9. **Noise Standards.**

(A) Liberty's operations shall comply with all federal and state statutes, Georgia Environmental Protection Division ("EPD") regulations, City of Americus ordinances, and all federal, state and local regulations, governing sound or noise limitations which emanate from the Data Center.

(B) If Liberty or the operator of the Data Center is determined by any governmental entity to exceed such sound or noise limitations, Liberty shall be notified in writing and the operator of the facility shall take corrective measures necessary to bring the facility into compliance with such noise limitations.

(C) All Measurements of decibels shall be taken using industry standard sound level meters and methodologies at the property line

10. **Backup Generator Testing.** Routine testing of backup generators shall be limited to the hours of 8:00 a.m. to 6:00 p.m. Monday through Friday. Backup generators shall be used only in emergency situations

11. **Cooling Systems.** Liberty shall utilize closed-loop cooling systems or other cooling technologies designed to minimize water consumption and prevent

discharge of process water infrastructure or natural waterways. Open-loop or once-through cooling systems are prohibited.

12. **Lighting.** Exterior lighting at the Liberty facility shall be shielded and directed downward to minimize glare and light spillover onto adjacent properties.

13. **Batteries Energy Storage Systems.** Battery energy storage systems associated with Data Center backup power systems shall comply with all applicable federal, state, and local fire and building codes, including applicable National Fire Protection Association (NFPA) standards. Where battery storage systems are utilized, Liberty shall coordinate with the local fire department regarding emergency response procedures and access requirements. Battery storage areas shall be clearly identified on site development plans submitted for review.

14. **Infrastructure Responsibility.** Approval of the Liberty Data Center by the City of Americus in accord with the City's Code of Ordinances shall not obligate the PDA or the City of Americus to construct, extend, or upgrade infrastructure or services necessary to support the Data Center facility. Any improvements to roads, utilities, or other infrastructure required to serve the Data Center facility shall be the responsibility of Liberty unless otherwise determined by the City of Americus.

15. **Clawback if Property Cannot Be Used by Liberty for the Purposes Agreed Upon in the Agreement.**

(A) Notwithstanding any other provision of this Agreement, or of any exhibits to this Agreement, the PDA shall have the absolute right and option to repurchase the Property from Liberty for the total sum of \$1.00 in the event that either (i) the Property must be re-zoned under the City of Americus Zoning Code to allow Liberty to undertake Liberty's proposed use or uses of the Property, and that the governing body of the City of Americus does not approve such re-zoning in accord with state law or local zoning ordinances; or (ii) Liberty is unable or unwilling to obtain all required licenses, permits, environmental approvals, water facilities and connections, sewer facilities and connections, wastewater treatment facilities, electrical facilities to operate Liberty's proposed improvements, under either federal, state, or local laws, regulations, and ordinances, which will allow Liberty to construct and operate its proposed Data Center on the Property or to construct the buildings or other improvements on the Property to be utilized by Liberty in connection with the construction or operation of the Liberty's proposed Data Center on the Property; or (iii) Liberty determines that the Property is not suitable for Liberty's proposed use or uses on the Property; or (iv) Liberty fails to begin actual construction of the facilities that Buyer will utilize to operate its proposed uses of the Property within eighteen (18) calendar months from the calendar month during which the parties closed the purchase and sale of the Property in accord with the PSA, and in the event that any such requirements or obligations are not met by Liberty as provided in this subparagraph, then the provisions of this Paragraph 15(C) of this Agreement shall be subject to invocation by the PDA.

(B) Liberty agrees and acknowledges that the Liberty's requirements and obligations established in this Paragraph 15(A) above are solely the obligations and requirements of Liberty, that the failure or inability of Liberty to meet or accomplish those requirements and obligations in a timely manner shall be the sole responsibility of Liberty, PDA shall have no obligations of any kind or nature to assist Liberty in meeting those obligations, and that Liberty hereby waives, releases, disclaims, and relinquishes any and all manner of actions, claims, damages, demands, causes of action, losses, whether in law or in equity, which Liberty, and its successors and assigns had in the past, now have, or may have in the future against the PDA, the PDA's officers, directors, employees, agents and contractors, arising as a result of Liberty's failure or inability to meet or accomplish such requirements and obligations as established in this Paragraph 15(A) hereof.

(C) In the event that the PDA determines to invoke its right to re-purchase the Property in accord with this Paragraph 15(C) of this Agreement, the PDA shall provide written notice to Liberty in accord with the provisions of Paragraph 8 hereof that the PDA is invoking its right to re-purchase the Property from Liberty in accord with the terms of this Paragraph 15(C) of this Agreement, and that the closing of such re-purchase shall occur not later than thirty (30) calendar days from the date of such notice. At the closing of such re-purchase, Liberty shall transfer and convey fee simple title to the Property to the PDA, by Limited Warranty Deed, free and clear of any and all liens, encumbrances, deeds to secure debt, mortgages, security interests, or other clouds on the title of the Property.

16. Default by Liberty and Clawback Rights as a Result.

(A) In the event that Liberty defaults with respect to the terms of this Agreement, the PDA shall provide written notice of such default in accord with the provisions of Paragraph 8 of this Agreement and shall provide Liberty sixty (60) calendar days from the date of such notice to remedy such default. With respect to the first default hereunder for which such sixty (60) day notice is provided by the PDA, in the event that Liberty does not remedy or resolve such default by the end of such sixty (60) day period, then the PDA shall be authorized to give a second notice to Liberty under this paragraph requiring that Liberty reimburse the PDA for one-half (1/2) of the agreed upon fair market value of the Property as acknowledged and agreed upon by the parties in Paragraph 4(A) of this Agreement.

(B) In the event that there is a second default under the terms of this Agreement, the PDA shall provide written notice of such default in accord with the provisions of Paragraph 8 of this Agreement and shall provide Liberty sixty (60) calendar days from the date of such notice to remedy such default. With respect to the second default hereunder for which such sixty (60) day notice is provided by the PDA, in the event that Liberty does not remedy or resolve such default by the end of such sixty (60) day period, then the PDA shall be authorized to give a second notice to Liberty under this paragraph requiring that Liberty reimburse the PDA for the

remaining one-half (1/2) of the agreed upon fair market value of the Property as acknowledged and agreed upon by the parties in Paragraph 4(A) of this Agreement.

17. **Indemnification of PDA.** Liberty shall, and does hereby agree to, indemnify, defend, and hold harmless the PDA, and its Board members, officers, employees, agents, and servants against all claims, losses and damages, including damage to persons (including death) or property, arising from, out of, or as a result of, any act or omission by, or negligence of, Liberty or its contractors and subcontractors, or the officers, agents, or employees thereof, while engaged in the performance of the activities to be performed under the terms of this Agreement, or while in or about the Property, or arising from any accident, occurrence, or injury not caused by an act of the PDA, its Board members, officers, employees, and agents or servants, or anyone employed by owner, while engaged in or about the performance of this Agreement, or while in or about the Property, or arising from liens, judgments, or claims for services rendered for labor or materials furnished in or for the performance of this Agreement.

18. **Georgia Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of Georgia.

19. **Potential Litigation Between Parties.** In the event that any litigation is filed or prosecuted between the parties that arises out of or relates to this Agreement, or the terms and obligations of the parties hereunder, such litigation shall be filed and prosecuted in the Superior Court of Sumter County, Georgia. Both parties hereby irrevocably waive any objection to the venue of any such litigation being in said Court, and further irrevocably waive any objection to the jurisdiction of such Court with respect to such litigation.

20. **Term of Agreement.** The term of this Agreement shall commence as of the Effective Date hereof, and shall terminate as of the date that the Data Center is completely closed and ceases operation; provided, however, the Parties shall be authorized, by written mutual consent, to terminate this Agreement upon such date as agreed upon in such future written agreement.

21. **Time Is of the Essence.** Time is and shall be of the essence of this Agreement; provided, however, that if the time within which any action, consent, approval or other activity contemplated, expires on a Saturday, Sunday or a national bank holiday, such time period shall automatically be deemed extended to the first day after the scheduled termination of such time period which is not a Saturday, Sunday or national bank holiday.

24. **Binding Agreement; Assignment.** This Agreement shall be binding upon, and inure to the benefit of, the parties and their respective successors and assigns. Neither party shall be authorized to assign this Agreement to any third party without the express written consent of non-assigning party; provided, however, that this Agreement may be assigned by Liberty to an affiliate of Liberty as long as Liberty provides thirty (30) calendar days advanced written notice of such proposed assignment and the Assignee provides a written agreement to the PDA assuming all of

Liberty's obligations under this Agreement. For purposes of this Agreement, the term "affiliate" means Liberty, and any other legal entity that, directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, Liberty.

23. **Waiver.** No waiver of any provision of this Agreement shall be effective unless in writing and signed by the party against whom enforcement of a waiver is sought and such waiver refers expressly to the Section containing the waived provision. No waiver of any right or remedy with respect of any occurrence shall be deemed a waiver of any right or remedy in respect of any other occurrence. Failure on the part of a Party to complain of any act or to declare any Party in default does not constitute a waiver by that party of its rights with respect to that default or to any future default.

24. **Severability.** If any part of this Agreement, or the application thereof to any circumstances of either Party, shall be held unenforceable, the remainder of this Agreement or the application of such provision to persons or circumstances other than those as to whom or which it is held unenforceable shall not be affected thereby, and shall be enforceable to the fullest extent permitted by law.

25. **Merger Clause.** This Agreement constitutes the sole and entire Agreement between the Parties hereto with respect to the subject matter of this Agreement, and no modification, change, or amendment of this Agreement shall be binding upon the parties unless and signed by all parties to this Agreement. There are no oral or written representations, understandings, promises, covenants, inducements, or agreements that are not contained or expressly referred to herein.

IN WITNESS WHEREOF, the Parties hereto and set their hands and affixed their seals as of the Effective Date hereof.



**Americus-Sumter Payroll
Development Authority**

By: _____

Paul Hall, Chairman

Attest: _____

John Shealy, Secretary

Liberty GA USA LLC

By: _____

PAUL D. BENEDETTO

Attest: _____

Wan

Exhibit "A"

102 Acres

All that tract or parcel of land situate, lying and being located in Land Lots 202 and 203 of the 27th Land District in the City of Americus, Sumter County, Georgia, containing 102 acres, more or less, and being more particularly described as follows: START where the westerly right of way of former Seaboard Coastline Railroad intersects the southern land lot line of Land Lot 202, which point is the POINT OF BEGINNING. From said POINT OF BEGINNING run along right of way of said railroad the following courses and distances, north 12 degrees 50 minutes 59 seconds west 742.53 feet to a point; north 14 degrees 46 minutes 50 seconds west a chord distance of 146.96 feet to a point; thence north 20 degrees 36 minutes 05 seconds west a chord distance of 146.65 feet to a point; thence run along a curve having a radius of 902.87 feet, an arc length of 810.66 feet, a chord length of 783.70 feet, a chord bearing north 50 degrees 00 minutes 57 seconds west to a point; thence north 80 degrees 17 minutes 09 seconds west a chord distance of 148.31 feet to a point; thence north 86 degrees 49 minutes 43 seconds west a chord distance of 148.84 feet to a point; thence run north 88 degrees 20 minutes 15 seconds west a distance of 1084.44 feet to a point lying on said railroad right of way; thence leaving said railroad right of way run south 01 degree 38 minutes 25 seconds west 329.37 feet to a point; thence run north 88 degrees 26 minutes 11 seconds west 435.85 feet to a point located on the easterly right of way of Swett Avenue Extension; thence run along the easterly right of way of Swett Avenue south 01 degree 41 minutes 11 seconds west 149.74 feet to a point; thence run north 88 degrees 20 minutes 49 seconds west 70.00 feet to a point; thence continue to run north 88 degrees 20 minutes 49 seconds west 515.22 feet to a point; thence run south 11 degrees 13 minutes 43 seconds east 398.48 feet to a point; thence run north 87 degrees 43 minutes 43 seconds west 695.00 feet to the center of Willets Branch; thence run along the centerline run of Willets Branch south 12 degrees 00 minutes 12 seconds east a chord distance of 718.16 feet to a point; thence run south 88 degrees 40 minutes 35 seconds east a distance of 700.00 feet to a point; thence run north 89 degrees 14 minutes 25 seconds east a distance of 710.80 feet to a point; thence run north 85 degrees 03 minutes 17 seconds east 286.98 feet to a point; thence run south 88 degrees 40 minutes 04 seconds east 712.35 feet to a point; thence run south 87 degrees 29 minutes 20 seconds east 1258.12 feet to a point where the westerly right of way of former Seaboard Coastline Railroad intersects the southern land lot line of Land Lot 202, which point is the POINT OF BEGINNING.

Said property being the same property described in that certain plat of survey prepared by D. Scott Langford, Georgia Registered Surveyor No. 3172, surveyed May 27, 2026, platted June 2, 2026, revised June 15, 2026, prepared for Americus-Sumter Payroll Development Authority, recorded in Plat Book F, Page 316, of the records of the Clerk of Superior Court of Sumter County, Georgia, which plat together with all its metes, bounds, courses and distance is incorporated into and made a part of this description by specific reference thereto.